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Royal Free London
NHS Foundation Trust

Data Sharing Agreement

In support of

NHSE & Cancer Alliances project to improve breast screening participation for people with disabilities

Template Version:	V3.0
Ratified by:	Kevin Winter – Director of Information Governance
Date ratified:	17/08/2021
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Accountable director (title)	Kevin Winter – Director of Information Governance
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Target audience:	Heads of service, project leads, programme managers, or those leading research

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Version Control

Template Version Control Sheet

Do not amend when implementing a local version, use 'Implementation Version Control Sheet' below.

Version	Date	Owner	Status	Comment
3.0	00/00/00	Kevin Winter – Director of Information Governance	FINAL	

Implementation Version Control Sheet

Local implementation version control to be used by services completing the template to track their revisions.

Version	Date	Owner	Status	Comment
1.0	17/02/2023	[redacted], Lead CNS North, Central and East London Breast Screening Services	Final	

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1. Parties

1.1. As detailed in Annex 1: Purpose Specific Data Sharing Schedules.

2. Background

2.1. The Sending Controller(s) agree to share the Personal Data with the Receiving Controller in the European Economic Area (EEA) on Terms set out in the Agreement and each Purpose Specific Data Sharing Schedule for which they are a party.

2.2. The Receiving Controllers each agree to use the Personal Data within the EEA on the Terms set out in this Agreement and each Purpose Specific Data Sharing Schedule for which they are a party.

2.3. The Sending Controller and Receiving Controller acknowledge that data sharing under this arrangement is a Controller to Controller arrangement, therefore each organisation is independently responsible for meeting its Controller responsibilities as set out in Data Protection Legislation.

2.4. The Receiving Controller acknowledges that for any information it receives under this Agreement and each Purpose Specific Data Sharing Schedule, it will be the sole Controller of the information it has received but shall have no rights or influence over the data source from where the transmitted information originated.

2.5. The body of the text of this agreement must be used with a Purpose Specific Data Sharing Schedule.

AGREED TERMS

3. Interpretation

The following definitions and rules of interpretation apply in this Agreement.

3.1. Definitions:

Agreed Purpose: has the meaning given to it in each Purpose Specific Data Sharing Schedule of Annex 1 of this Agreement.

Agreement: this Agreement, entered into between the Parties.

Business Day: a day other than a Saturday, Sunday or public holiday in England when banks in London are open for business.

Supervisory Authority: the relevant supervisory authority in the territory where the Parties to this Agreement are established.

Data Security Breach: a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to the Transferred Personal Data.

Data Sharing Code of Practice: The Information Commissioner's Office Data Sharing Code of Practice.

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Information Rights Request: has the meaning of a Data Subject exercising their rights under UK GDPR Chapter 3 "Rights of the Data Subject".

Parties: Signatories within Purpose Specific Data Sharing Schedules.

Privacy and Data Protection Requirements: Data Protection Act 2018 (DPA 2018) and United Kingdom General Data Protection Regulation (UKGDPR) as referenced in the DPA 2018 – identified in this documentation hereafter as the Data Protection legislation. The Privacy and Electronic Communications (EC Directive) Regulations 2003 (SI 2426/2003) (as amended) and all applicable laws and regulations relating to the Processing of the personal data and privacy, including where applicable the guidance and codes of practice issued by the Information Commissioner or any other national Supervisory Authority, and the equivalent of any of the foregoing in any relevant jurisdiction.

Purpose Specific Data Sharing Schedule: Detailed locally determined specifics of data sharing arrangements found in Annex 1 of this Agreement.

Receiving Controller: Controller receiving transferred personal and special categories data.

Sending Controller: Controller sending transferred personal and special categories data.

Staff: Includes, substantive employees, agency staff, interim's, secondees, volunteers, honorary contract employees' and employees' of any data processor.

Term: Term of the Data Sharing Agreement from the Commencement Date.

Transferred Personal Data: Any sharing of Personal or Special Categories Data by a Sending Controller to a Receiving Controller.

Third Party: An individual or legal person, public authority, agency or body other than the Data Subject, controller, processor and persons who, under the direct authority of the controller or processor, are authorised to process personal data.

3.2. Controller, Joint Controller, Processor, Data Subject and Personal Data, Special Category Data, Processing and appropriate technical and organisational measures shall have the meanings given to them in the Data Protection legislation.

3.3. Clause, schedule and paragraph headings shall not affect the interpretation of this Agreement.

3.4. The schedules form part of this Agreement and shall have effect as if set out in full in the body of this Agreement. Any reference to this Agreement includes the schedules.

3.5. Unless the context otherwise, requires, words in the singular shall include the plural and in the plural shall include the singular.

3.6. A reference to a statute or statutory provision shall include all subordinate legislation made from time to time under that statute or statutory provision.

3.7. References to clauses, Annex and Schedules are to the clauses and Schedules of this Agreement and references to paragraphs are to paragraphs of the relevant Schedule.

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3.8. Any words following the terms including, include, in particular or for example or any similar phrase shall be construed as illustrative and shall not limit the generality of the related general words.

3.9. In the case of any ambiguity between any provision contained in the Purpose Specific Data Sharing Schedules and body of this Agreement, the provision in the Purpose Specific Data Sharing Schedules of this Agreement shall take precedence.

3.10. Unless the context otherwise requires the reference to one gender shall include a reference to the other genders.

4. Purpose

4.1. The United Kingdom General Data Protection Regulation (UK GDPR) and United Kingdom Data Protection Act 2018 (DPA18) require all organisations to follow a framework for effective, secure and lawful data sharing. This Agreement sets out the framework for the sharing of Personal Data between the Parties as Controllers. It defines the principles and procedures that the Parties shall adhere to and the responsibilities the Parties owe to each other and Data Subjects.

4.2. This Data Sharing Agreement consists of a unified data sharing Agreement and a number of Purpose Specific Data Sharing Schedules for specific governance arrangements, confirming roles, responsibilities and accountabilities of involved health and care partners in each Purpose Specific Data Sharing Schedule.

4.3. The Parties agree to only process Personal Data, as described in each Purpose Specific Data Sharing Schedule. The Parties shall not Process Personal Data which is shared under this Agreement in a way that is incompatible with the purposes described in each Purpose Specific Data Sharing Schedule (the Agreed Purpose).

4.4. Each party shall appoint a single point of contact who will work together with the other Parties to reach an agreement with regards to any issues arising from the data sharing and to actively improve the effectiveness of the data sharing initiative. The points of contact for each of the Parties are documented in each Purpose Specific Data Sharing Schedule.

5. Compliance with national data protection laws

5.1. Each Party must ensure compliance with applicable Privacy and Data Protection Requirements at all times during the Term of this Agreement.

6. Transmitted personal data

6.1. Any Personal or Special Category Data to be transmitted between the Parties during the Term of this Agreement are documented in each Purpose Specific Data Sharing Schedule, together with any access and Processing restrictions as agreed and established by the Parties.

6.2. The Shared Personal Data must not be irrelevant or excessive with regard to the Agreed Purposes.

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6.3. The Receiving Controller acknowledges that it is unlawful for them to request Personal Data from a Sending Controller which is not necessary or proportionate to achieve the aims of the Agreed Purpose.

7. Fair and lawful processing

7.1. Each party shall ensure that it Processes the transferred Personal or Special Categories Data fairly and lawfully in accordance with clause 7.2 during the Term of this Agreement.

7.2. Each party shall ensure that it identifies the relevant lawful basis for the transfer of any Personal or Special Categories Data within each Purpose Specific Data Sharing Schedule and any ongoing Processing.

7.3. Each party must meet the requirements of UK GDPR Article 5, Data Protection Principles relating to Processing Personal Data within each Purpose Specific Data Sharing Schedule.

7.4. Data Protection Principles, UK GDPR Article 5:

(a) Lawfully, fairly and in a transparent manner
(b) Purpose Limitation
(c) Data minimisation
(d) Accurately
(e) Storage limitation
(f) Integrity and confidentiality
(g) Accountability

7.5. Each Sending Controller shall, in respect of transmitted Personal Data, ensure that their Privacy Notices are clear and provide sufficient information to the Data Subjects for them to understand what of their Personal Data the Sending Controller is sharing with the Receiving Controller, the circumstances in which it will be shared, the purposes for the data sharing and either the identity of the Receiving Controller or a description of the type of organisations that will receive the Personal Data.

8. Data quality

8.1. The Parties must develop a reliable means of converting Transferred Personal Data to ensure compatibility with each party's respective datasets as set out within each Purpose Specific Data Sharing Schedule.

8.2. Each Sending Controller shall, in so far as is reasonable, ensure that before data is transmitted, Personal Data is accurate and that it has appropriate internal procedures in place for the Receiving Controller to sample information intended to be transmitted.

8.3. Transferred Personal Data must be limited to the Personal Data described within the relevant Purpose Specific Data Sharing Schedule of this Agreement.

9. Data Subjects' rights

9.1. Data Protection legislation provides Data Subjects the ability to exercise certain rights about the Processing of their Personal Data through an Information Rights Request, covering:

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(a) The right to be informed;
(b) The right of access;
(c) The right to rectification;
(d) The right to erasure;
(e) The right to restrict Processing;
(f) The right to data portability;
(g) The right to object; and,
(h) Rights in relation to automated decision making and profiling.

9.2. Each Controller is independently responsible for taking all reasonable steps to inform Data Subjects about their rights and ensuring they comply with Data Subject rights in accordance with applicable Privacy and Data Protection Requirements.

9.3. Where a Data Subject raises an objection to sharing their Personal Data with other Controllers under Article 21, each Controller shall process the objection in accordance with their requirements as a Controller.

9.4. Each individual Controller is responsible for discharging its requirement under Article 15, Right of Access by the Data Subject, based on the information it holds as a Controller, and is responsible for maintaining their own record of individual requests for information, the decisions made and any information that was disclosed.

9.5. The Parties agree to provide reasonable assistance as is necessary to each other to enable them to comply with Information Rights Requests and to respond to any other queries or complaints from Data Subjects.

9.6. Where the Sending Controller is transmitting information to support a secondary use it is the sending organisations responsibility to ensure the national data opt-out has been applied.

9.7. Where the Receiving Controller receives data from the Sending Controller under an Agreed Purpose and lawful basis where the national data opt-out does not apply, it shall be the Receiving Controllers responsibility to apply the national data opt-out on any secondary use Processing they undertake and to ensure that Processing is not contrary to the agreement set out in the Purpose Specific Data Sharing Schedule nor Data Protection legislation.

10. Data retention and deletion

10.1. The Receiving Controller shall not retain nor process Transmitted Personal Data for longer than is necessary to carry out the Agreed Purposes described in each Purpose Specific Data Sharing Schedule.

10.2. Notwithstanding clause 10.1, the Parties shall continue to retain Transferred Personal Data in accordance with any statutory or professional retention periods applicable to them.

10.3. The Controllers shall follow the Records Management Code of Practice for Health and Social Care 2016 (or any superseding code of practice) in the event information is retained.

10.4. Each Receiving Controller may retain any transmitted personal data where specified in each Purpose Specific Data Sharing Schedule.

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10.5. Where clause 10.4 is not engaged, each Receiving Controller shall ensure that the data is securely deleted in the following circumstances:

(a) on termination of the Agreement or Purpose Specific Data Sharing Schedule;
(b) on expiry of the Term of the Agreement;
(c) once Processing of the Transferred Personal Data is no longer necessary for the purposes it was originally shared for.

10.6. Following the deletion of Transferred Personal Data in accordance with clause 10.5, each Receiving Controller shall notify the relevant Sending Controller that the Transferred Personal Data in question has been securely deleted.

11. Transfers

11.1. For the purposes of this clause, Third Party Processing shall mean any Processing of Personal Data transmitted under any Purpose Specific Data Sharing Schedule between a Receiving Controller and a Third Party.

11.2. A Receiving Controller shall not disclose nor transfer any information it receives under agreements in the Purpose Specific Data Sharing Schedules to a Controller or processor located outside the European Economic Area (EEA) without the written consent of the Sending Controller.

11.3. Clause 11.2 will not apply to any data transfers carried out by the Sending Controller in respect of Transferred Personal Data detailed in this Agreements Purpose Specific Data Sharing Schedules.

12. Security and training

12.1. Each Sending Controller shall only provide the transmitted Personal Data to the Receiving Controller by using proportionately secured measures.

12.2. Having regard to the state of technological development and the cost of implementing such measures, the Parties have in place appropriate technical and organisational security measures in order to prevent:

(a) unauthorised or unlawful Processing of transmitted Personal Data; and,
(b) the accidental loss or destruction of, or damage to, the transmitted Personal Data,
(c) ensure a level of security appropriate to:
(d) the harm that might result from such unauthorised or unlawful Processing or accidental loss, alteration, destruction or damage to transmitted Personal Data; and
(e) the nature of the transmitted Personal Data to be protected.

12.3. It is the responsibility of each party to ensure that its Staff members are appropriately trained to handle and process the Transferred Personal Data in accordance with appropriate technical and organisational security measures together with any other applicable Privacy and Data Protection Requirements.

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12.4. The level, content and regularity of training referred to in clause 12.3 shall be proportionate to the Staff members' role, responsibility and frequency with respect to their handling and Processing of the Transferred Personal Data.

13. Data security breaches and reporting procedures

13.1. Having considered the applicable Privacy and Data Protection Requirements, the Parties have in place their own guidance and processes that must be followed in the event of a Data Security Breach.

13.2. Parties are under a strict obligation to notify any potential or actual losses of the Transferred Personal Data to Parties to each Purpose Specific Data Sharing Schedule as soon as possible and, in any event, within one (1) Working Day of identification of any potential or actual loss to enable the Parties to consider what action is required in order to resolve the issue in accordance with the applicable national data protection laws and guidance.

13.3. Clause 13.1 also applies to any breaches of data integrity.

13.4. The Parties agree to provide reasonable assistance as is necessary to each other to facilitate the handling of any instances under clause 13.1 or 13.3 breach in an expeditious and compliant manner.

14. Review and termination of Agreement

14.1. New Parties can only be added in line with the relevant Purpose Specific Data Sharing Schedules change management process.

14.2. In the event that a party terminates this Agreement or a new Controller joins the Agreement in accordance with clause 14.1, an amended and updated version of this Agreement will be circulated in line with the relevant Purpose Specific Data Sharing Schedules change management process.

14.3. The Parties shall review the effectiveness of the Purpose Specific Data Sharing Schedules of this Agreement as set out in each Purpose Specific Data Sharing Schedule. The Parties shall continue, amend or terminate the Agreement depending on the outcome of this review.

14.4. The review of the effectiveness of this Agreement will involve assessing:

(a) Whether the purposes for which the Transferred Personal Data is being processed are still the ones listed in each Purpose Specific Data Sharing Schedule of this Agreement;

(b) Whether the Transferred Personal Data is still as listed in each Purpose Specific Data Sharing Schedule of this Agreement;

(c) Whether the legal framework governing data quality, retention, and Data Subjects' rights are being complied with; and,

(d) Whether Personal Data breaches involving the Transferred Personal Data have been handled in accordance with this Agreement and data protection legislation.

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14.5. Each Sending Controller reserves its rights to inspect the Receiving Controller's arrangements for the Processing of Transferred Personal Data and to terminate the Agreement where it considers that the other party is not Processing in accordance with this Agreement.

14.6. Each Receiving Controller shall make available information relating to its arrangements for the Processing of Transferred Personal Data and shall make available other information reasonably requested by a Sending Controller in relation to any Purpose Specific Data Sharing Schedule to which it is a party.

15. Resolution of disputes with Data Subjects or the Supervisory Authority

15.1. In the event of a dispute or claim brought by a Data Subject or the Supervisory Authority concerning the Processing of Transferred Personal Data against one, some or all of the Parties, the Parties will inform each other about any such disputes or claims, and will cooperate with a view to settling them amicably in a timely fashion.

15.2. The Parties agree to respond to any generally available non-binding mediation procedure initiated by a Data Subject or by the Supervisory Authority. If they do participate in the proceedings, the Parties may elect to do so remotely (such as by telephone or other electronic means). The Parties also agree to participating in any other arbitration, mediation or other dispute resolution proceedings developed for data protection disputes.

16. Language

16.1. This Agreement is drafted in the English language. If this Agreement is translated into any other language, the English language version shall prevail.

16.2. Any notice given under or in connection with this Agreement shall be in English. All other documents provided under or in connection with this Agreement shall be in English, or accompanied by a certified English translation.

17. Warranties

17.1. Each party warrants and undertakes that it will:

(a) Process the Transferred Personal Data in compliance with all applicable Privacy and Data Protection Requirements;
(b) Make available upon request to the Data Subject a copy of this Agreement, unless the Clause contains confidential information;
(c) Respond within a reasonable time and as far as reasonably possible to enquiries from the relevant Supervisory Authority in relation to the Transferred Personal Data;
(d) Respond to Information Rights Requests in accordance with the Privacy and Data Protection Requirements;
(e) Where applicable, maintain notification (formerly known as registration) with all relevant Supervisory Authorities to process Shared Personal Data for the Agreed Purpose;
(f) Take all appropriate steps to ensure compliance with the security measures set out in clause 12 above; and,
(g) Undertake to comply with the Information Commissioner's Office Data Sharing Code of Practice.

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17.2. Each Sending Controller warrants and undertakes that it will, in so far as is reasonable, ensure that the Shared Personal Data is accurate.

17.3. Each Receiving Controller warrants and undertakes that it will not process Transferred Personal Data outside the European Economic Area (EEA).

17.4. Except as expressly stated in this Agreement, all warranties, conditions and terms, whether express or implied by statute, common law or otherwise are hereby excluded to the extent permitted by law.

18. Indemnity

18.1. The Parties shall be liable to each other for, and shall indemnify and keep each other indemnified against, any loss, damages, costs, expenses (including without limitation legal costs and expenses), claims or proceedings that arise or result from a parties negligent acts or omissions or breach of this agreement in connection with the performance of this agreement, except to the extent that such loss, damages, costs, expenses (including without limitation legal costs and expenses), claims or proceedings have been caused by any act or omission by, or on behalf of, or in accordance with the instructions of, the Party wishing to raise a claim.

19. Allocation of cost

19.1. Each party shall perform its obligations under this Agreement at its own cost.

20. Limitation of liability

20.1. Nothing in this Agreement is intended to limit any Party's liability in respect of the exercise of any of its statutory functions or its obligations to comply with Data Protection Law.

21. Third party rights

21.1. No one other than a party to this Agreement, their successors and permitted assignees, shall have any right to enforce any of its Terms.

22. Variation

22.1. No variation of this Agreement shall be effective unless the requirements of the Purpose Specific Data Sharing Schedule change management process have been complied with.

23. Waiver

23.1. Failure or delay by any Party to exercise an option or right conferred by this Agreement shall not of itself constitute a waiver of such option or right.

23.2. The delay or failure by either Party to insist upon the strict performance of any provision, term or condition of this Agreement or to exercise any right or remedy consequent upon such breach shall not constitute a waiver of any such breach or any subsequent breach of such provision, term or condition.

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24. Severance

24.1. If any provision or part-provision of this Agreement is or becomes invalid, illegal or unenforceable, it shall be deemed modified to the minimum extent necessary to make it valid, legal and enforceable. If such modification is not possible, the relevant provision or part-provision shall be deemed deleted. Any modification to or deletion of a provision or part-provision under this clause shall not affect the validity and enforceability of the rest of this Agreement.

25. Changes to the applicable law

25.1. In case the Privacy and Data Protection Requirements change in a way that the Agreement is no longer adequate for the purpose of governing lawful data sharing exercises, the Parties agree that each single point of contact will negotiate in good faith to review the Agreement in light of the new legislation.

26. No partnership or agency

26.1. Nothing in this Agreement is intended to, or shall be deemed to, establish any partnership or joint venture between any of the Parties, constitute any party the agent of another party, or authorise any party to make or enter into any commitments for or on behalf of any other party.

26.2. Each party confirms it is acting on its own behalf and not for the benefit of any other person.

27. Entire agreement

27.1. This Agreement constitutes the entire Agreement between the Parties and supersedes and extinguishes all previous Agreements, promises, assurances, warranties, representations and understandings between them, whether written or oral, relating to its subject matter.

27.2. Each party acknowledges that in entering into this Agreement it does not rely on, and shall have no remedies in respect of any statement, representation, assurance or warranty (whether made innocently or negligently) that is not set out in this Agreement.

27.3. Each party agrees that it shall have no claim for innocent misrepresentation based on any statement in this Agreement.

28. Rights and remedies

28.1. Except as expressly provided in this Agreement, the rights and remedies provided under this Agreement are in addition to, and not exclusive of, any rights or remedies provided by law.

29. Notice

29.1. Any notice or other communication given to a party under or in connection with this Agreement shall be in writing, and addressed to each single point of contact.

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30. Governing law

30.1. This Agreement and any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with it or its subject matter or formation shall be governed by and construed in accordance with the law of England and Wales.

31. Jurisdiction

31.1. Each party irrevocably agrees that the courts of England and Wales shall have exclusive jurisdiction to settle any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with this Agreement or its subject matter or formation.

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Annex 1: Purpose Specific Data Sharing Schedules

Schedule 1: Improving breast screening participation for people with disabilities across the NLBSS and CELBSS screening services

1. Parties to Agreement, Single Points of Contact and Sign-off
This Data Sharing Agreement is between the Royal Free London NHS Foundation Trust, an acute trust, providing breast screening services and local Primary Care, Community Learning Disabilities and Local Authority teams. These organisations are:

1.1 Sending Organisation name :	Hertfordshire
Address	
Single Point of Contact	
Contact Name	[redacted]
Role	Health Equalities Nurse Cancer Screening
Team / Directorate	
Email	
Telephone	
Sign-off	
Primary Designated Officer / Representative name	
Job title and role	
Signature: (To be removed if uploaded to DCC or ISG)	
Date	
Secondary Designated Officer / Representative name	
Job title	
Signature	
Date	

AND

1.2 Sending Organisation name :	Enfield Integrated Learning Disability Service
Address	
Single Point of Contact	
Contact Name	[redacted]
Role	Specialist Community Nurse Practitioner
Team / Directorate	
Email	
Telephone	
Sign-off	
Primary Designated Officer / Representative name	
Job title and role	

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Signature: (To be removed if uploaded to DCC or ISG)	
Date	
Secondary Designated Officer / Representative name	
Job title	
Signature	
Date	

AND

1.3 Sending Organisation name :	Barnet
Address	
Single Point of Contact	
Contact Name	[redacted]
Role	CLCH Health Team Manager, Barnet Learning Disabilities Service
Team / Directorate	
Email	
Telephone	
Sign-off	
Primary Designated Officer / Representative name	
Job title and role	
Signature: (To be removed if uploaded to DCC or ISG)	
Date	
Secondary Designated Officer / Representative name	
Job title	
Signature	
Date	

AND

1.4 Sending Organisation name :	Haringey
Address	
Single Point of Contact	
Contact Name	[redacted]
Role	Haringey Community Learning Disabilities Team
Team / Directorate	
Email	
Telephone	
Sign-off	
Primary Designated Officer / Representative name	
Job title and role	
Signature: (To be removed if uploaded to DCC or ISG)	

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Date	
Secondary Designated Officer / Representative name	
Job title	
Signature	
Date	

AND

1.5 Sending Organisation name :	Brent, Harrow
Address	
Single Point of Contact	
Contact Name	[redacted]
Role	
Team / Directorate	
Email	
Telephone	
Sign-off	
Primary Designated Officer / Representative name	
Job title and role	
Signature: (To be removed if uploaded to DCC or ISG)	
Date	
Secondary Designated Officer / Representative name	
Job title	
Signature	
Date	

AND

1.6 Sending Organisation name :	Newham, Tower Hamlets
Address	
Single Point of Contact	
Contact Name	[redacted]
Role	
Team / Directorate	
Email	
Telephone	
Sign-off	
Primary Designated Officer / Representative name	
Job title and role	
Signature: (To be removed if uploaded to DCC or ISG)	
Date	
Secondary Designated Officer / Representative name	
Job title	
Signature	

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Date	

AND

1.7 Sending Organisation name :	Camden & islington
Address	
Single Point of Contact	
Contact Name	[redacted]
Role	nurse
Team / Directorate	
Email	[redacted]
Telephone	
Sign-off	
Primary Designated Officer / Representative name	[redacted]
Job title and role	nurse
Signature: (To be removed if uploaded to DCC or ISG)	
Date	
Secondary Designated Officer / Representative name	[redacted]
Job title	nurse
Signature	
Date	

AND

1.8 Sending Organisation name :	Hackney & The City of London
Address	
Single Point of Contact	
Contact Name	[redacted]
Role	
Team / Directorate	
Email	
Telephone	
Sign-off	
Primary Designated Officer / Representative name	
Job title and role	
Signature: (To be removed if uploaded to DCC or ISG)	
Date	
Secondary Designated Officer / Representative name	
Job title	
Signature	
Date	

AND

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1.9 Sending Organisation name :	Waltham Forest
Address	
Single Point of Contact	
Contact Name	[redacted]
Role	
Team / Directorate	
Email	
Telephone	
Sign-off	
Primary Designated Officer / Representative name	
Job title and role	
Signature: (To be removed if uploaded to DCC or ISG)	
Date	
Secondary Designated Officer / Representative name	
Job title	
Signature	
Date	

AND

1.9 Sending Organisation name :	Newham
Address	
Single Point of Contact	
Contact Name	[redacted]
Role	
Team / Directorate	
Email	
Telephone	
Sign-off	
Primary Designated Officer / Representative name	
Job title and role	
Signature: (To be removed if uploaded to DCC or ISG)	
Date	
Secondary Designated Officer / Representative name	
Job title	
Signature	
Date	

(Hereinafter known as "the Sending Controller(s)")

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AND

1.2 Receiving Organisation name :	Royal Free London NHS Foundation Trust
Address	Royal Free Hospital, Pond Street, London, NW3 2QG
Single Point of Contact	
Contact Name	[redacted]
Role	Health Promotion Lead
Team / Directorate	Hospital Management Systems
Email	[redacted]
Telephone	[redacted]
Sign-off	
Primary Designated Officer / Representative name	[redacted]
Job title and role	Health promotion senior Officer
Signature: (To be removed if uploaded to DCC or ISG)	
Date	
Secondary Designated Officer / Representative name	[redacted]
Job title	Lead Breast Screening CNS
Signature (To be removed if uploaded to DCC or ISG)	
Date	

(Hereinafter known as "the Receiving Controller(s)")

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2. Service Commencement and Agreement of Contract Term		
2.1	Effective Date	27/03/2023
2.2	Data Sharing Agreement Term	24months
2.3	Data Sharing Agreement review date	12 months
2.4	Option to extend Data Sharing Agreement	24 months
2.5	Expiry Date	26/02/2025
2.6	Controller Earliest Termination Date	Earliest termination within 7 Business Days of Commencement Date 06/03023

3. What is being shared?		
3.1	Agreed Purpose.	**Subject matter of the Processing** Processing applies to patients who have been invited to the Royal Free Breast Screening Service; 1. To support the provision of direct care: A clinical, social or public health activity concerned with the prevention, investigation and treatment of illness and the alleviation of suffering of individuals. It includes supporting individuals' ability to function and improve their participation in life and society. It includes the assurance of safe and high quality care and treatment through local audit, the management of untoward or adverse incidents, person satisfaction including measurement of outcomes undertaken by one or more registered and regulated health or social care professionals and their team with whom the individual has a legitimate relationship for their care.

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		2. To support Population Health: Programmes to improve physical and mental health outcomes, promote wellbeing and reduce health inequalities across an entire population.
3.2	What sort of information do you intend to share? *Tick all that apply*	☒ Identifiable ☐ Pseudonymised ☐ De-identified ☐ Aggregate
3.3	Describe affected Data Subjects *Tick all that apply*	☒ NHS Patients ☐ Service Users ☐ Social Care Patients ☐ Patients representatives ☐ Public ☐ Staff (including Agency, Temp, Casual and Volunteers) ☐ Customers, Clients
3.4	Describe the information you intend to share?	• NHS Number, • category of Learning Disability • level of support, • reasonable adjustment required.

4. Benefits test		
4.1	What outcomes are you seeking to achieve through sharing information?	Patient identifiable information is being shared in order to encourage women of eligible screening age with learning disabilities who have not attended their breast screening appointment to do so.
4.2	What benefits are there to patients?	The intended effect on the patient is improvement in health outcomes. Those eligible for other cancer screening programmes are likely to participate in those as well, to improve overall health outcomes for these groups that currently don't access these services.

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4.3	What benefits are there to the Sending Controller organisation?	Through the use of health promotion initiatives, working in collaboration with other health and social care providers, the project aims to break down the barriers where inequalities in access exist and increase uptake in breast screening in line with national targets thereby improving earlier diagnosis of breast cancer.
4.4	What benefits are there to the Receiving Controller?	Through the use of health promotion initiatives, working in collaboration with other health and social care providers, the project aims to break down the barriers where inequalities in access exist and increase uptake in breast screening in line with national targets thereby improving earlier diagnosis of breast cancer.
4.5	Are there any wider population health benefits?	The project will address the inequalities of access to Breast screening from the geographical areas the Royal Free London NHS Foundation Trust are responsible for breast screening.

5. Basis for sharing?		
5.1	Identify relevant legal basis for sharing **Article 6**	Under UK GDPR, for processing personal data for providers' administrative purposes, the most appropriate Article 6 condition that is available to all public funded health and social care organisations is: Article 6(1)(e) "the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller" DPA Section 8 Condition. The lawfulness of processing personal data set out in Article 6(1) (e) of the UK GDPR (as above) is permitted under Section 8 (d) of DPA 2018: Processing is necessary for the exercise of statutory functions.
5.2	Legal basis for sharing the information ***special categories*** of personal information **Article 9**	In addition to the above, an Article 9 condition of processing must also be used;- For the purposes of Article 9(2) (h) of the UK GDPR, the circumstances in which the sharing/processing of special categories of personal data is carried out is subject to the conditions and safeguards referred to in Article 9(3) of the UK GDPR (obligation of professional secrecy), which include circumstances in which it is carried out under DPA Section 11(1) supplementary: • by or under the responsibility of a health professional, or • by another person who in the circumstances owes a duty of confidentiality under an enactment or rule of law

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		The terms “health professional” and “social work professional” are defined in Section 204 of DPA 2018, and include a broad range of different professionals.
5.3	Legal Basis for sharing under the Common Law Duty for Confidence	It is an expectation of the patients attending the breast screening services that if information is given in circumstances where it is expected that a duty of confidence applies, that information will not normally be disclosed without their consent. This project forms part of direct patient care, therefore for the purposes of common law, consent is implied.
5.4	Data Protection Impact Assessment.	Not required as this is not high-risk processing.

6. Controls		
6.1	How will the information be transferred?	Data will be transferred using NHS mail or an alternative secure Trust approved file sharing mechanisms. Data will then be held on a secure database within the Trust’s IT infrastructure/environment.
6.2	Arrangements (if needed) in place to arrange for **updates** of the information to be shared.	It is unlikely updates will be required once information has been sent.
6.3	If applicable, how will **accuracy** of the information be maintained?	The accuracy of information will be verified by the sending controller before it is released.
6.4	How the information will be **disposed** of?	The breast screening team can review their caseload’s records and assess whether they have reached their minimum retention period prior to secure deletion from the Breast Screening NBSS system.
6.5	What is the **retention** period of the special category data being shared?	Personal data will be retained in line with the Trust’s period of retention. Cancer/oncology records: Retention period is 30 years, or 8 years after death.

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6.6	Are audit trails available of who has accessed/edited/destroyed any personal data?	The Royal Free's NBSS records an audit trail of who has accessed, edited or deleted any personal data
6.7	How will any incident or personal data breach (for the purposes of Article 4 UK GDPR) be managed?	Incidents will be managed according to the trusts Incident policy and logged on Datix.

7. Assurances – Sending Controller to complete		
7.1	Describe any details about the accuracy of the information.	When sharing details from Learning Disabilities teams to the Royal Free, quality checks will be performed prior to sending. i.e to double check the patient NHS number and other details are correct.
7.2	What (if any) restrictions are to be placed on the specific use of this information?	The data provided will be used only for the purposes of this project.

8. When and how frequently will sharing take place?		
8.1	Frequency of information transfer?	As and when required

9. Review and Change Management

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9.1	Process for review.	Data Sharing arrangements will be reviewed if the needs of the project change.
9.2	Change management	Any changes to this agreement shall be in writing and agreed by all parties that are part of this agreement.

10. Data Subject rights and communicating this agreement		
10.1	How will Data Subjects be informed of the data sharing undertaken further to this Agreement (Articles 13 and 14 UK GDPR)?	Privacy notices are available on the sending and receiving organisations web sites and printed versions will be available on request.
10.2	Who is responsible for responding to any Information Rights request relating to the information covered by this Agreement?	This will be made clear on each organisations privacy notice.
10.3	How will the essence of this Agreement be made available to the Data Subjects?	The essence of this Agreement will be made available to the Data Subjects via each participating organisations privacy notice and will also be available on request.